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File No.: EXP202211705

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant), on April 1, 2022, filed a complaint with the Irish Data Protection Authority (Data Protection Commission). The complaint is directed against MAKING SOLUTIONS, S.L. (MY PERFECT WEDDING) with NIF B76509769 (hereinafter, MY PERFECT WEDDING).

The reasons on which the complaint is based are as follows:

On February 18, 2022, the complainant requested the right of access to their personal data and that of their partner, without such request being duly addressed by MY PERFECT WEDDING.

The complaint also indicates that: "(...) we note that there are parties involved in this where they have furnished our sensitive data to friends of theirs without them having a consent from us. We are aware that the contract does have privacy laws included in it, whereby it states that they would furnish documents to solicitors however this is not the case and we have an email from their friend indicating this. (...)”

[unofficial translation: "(...) we note that there are parties involved in this where they have furnished our sensitive data to friends of theirs without them having a consent from us. We are aware that the contract does have privacy laws included in it, whereby it states that they would furnish documents to solicitors however this is not the case and we have an email from their friend indicating this. (...)”]

Along with the complaint, the following documents are submitted:

- Contract dated November 15, 2018, signed between MY PERFECT WEDDING and A.A.A. and B.B.B., for the celebration of a wedding.

- Printout of an email sent to info@myperfectwedding.eu on February 18, 2022, at 16:21, with the subject “Re: My Perfect Wedding I A.A.A. & B.B.B. (previously C.C.C.)” and the following content: “Dear Sirs,

We A.A.A. and B.B.B. of ***ADDRESS.1 hereby make an access request under Article 15 of the General Data Protection Regulation (GDPR) 2016/679 for a copy of any information, documents or other information you have in relation to us, in electronic or manual form in relation to ourselves and our wedding arrangements held by you.

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I hereby authorise you to release all and any documents and information in relation to the aforementioned to us by way of email copies to ***EMAIL.1.

Regards,

Kind regards

A.A.A.”

[unofficial translation: “Dear Sirs,

We A.A.A. and B.B.B. of ***EMAIL.2 hereby request access under Article 15 of the General Data Protection Regulation (GDPR) 2016/679 for a copy of any information, documents or other information you hold in relation to us, in electronic or manual form regarding us and the arrangements for our wedding made by you.

I hereby authorise you to provide all and any documents and information regarding us via copies to the email ***EMAIL.1.

Regards,

Kind regards

A.A.A.”]

- Printout of an email sent to planner@myperfectwedding.eu and info@myperfectwedding.eu on March 4, 2022, at 12:54, in response to the previous email, with the subject "FW: (***)REFERENCE.1) GDPR Access request" and the following content:

"Dear Sirs,

We await hearing herein by return.

Kind regards,

A.A.A. and B.B.B."

[unofficial translation: "Dear Sirs,

We await your response.

Kind regards,

A.A.A. and B.B.B."]

- Printout of an email from dir@makingsolutionsgroup.com to ***EMAIL.3, received on March 9, 2022, at 04:12, with the subject "Re: FW: (***)REFERENCE.1) GDPR Access request" and the following content:

"A.A.A., good morning:

This is to inform you that we have received your request dated March 4, 2022, for access to the data held by this company regarding you and B.B.B.

Please note that from your request, a legal period of 30 days opens as legally established for this purpose. Attached is an image with an excerpt of the law for your information.

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Briefly reviewing your request, we need you to clarify/confirm the following in order to proceed:

1. You are requesting that it be done electronically, correct?
2. You want that delivery to be made exclusively to your email address, ***EMAIL.3, correct?
3. You have copied ***EMAIL.4 on your request. Please confirm that this email address belongs to B.B.B. and that it also refers to C.C.C. with email ***EMAIL.5?

Without further matters to address, we await your clarifications to proceed."

- Printout of an email sent from ***EMAIL.3 to dir@makingsolutionsgroup.com on March 9, 2022, at 4:31 PM, in response to the previous email, with the following content:

"Dear Sir,

I note your email, I am aware of the 30-day period and oblige. You might note that the request was originally sent on the 18th of February last.

I reply in numerical order as follows:

1. You are correct the request should be made electronically.
2. You can make the request to both myself and B.B.B. if that would make you feel more comfortable; not that it is relevant to make it to both parties. The email addresses are as follows: ***EMAIL.1 and ***EMAIL.6
3. Yes you are correct B.B.B.'s private email address is ***EMAIL.7. For the record B.B.B.'s previous surname was C.C.C.. Not that it is relevant for the request herein.

Thanking you in advance. Kind regards, A.A.A."

(unauthorized translation: "Dear Sir, I note your email, I am aware of the 30-day period and oblige. Please note that the request was originally sent on the 18th of February last.

I reply in numerical order as follows:

1. You are correct, the request should be made electronically.
2. You can make the request to both myself and B.B.B. if that makes you more comfortable; it is not relevant to make it to both parties. The email addresses are as follows: ***EMAIL.1 and ***EMAIL.6.
3. Yes, you are correct, B.B.B.'s private email address is ***EMAIL.7. For the record, B.B.B.'s previous surname was C.C.C.. It is not relevant for the current request.

Thank you in advance. Best regards, A.A.A.)

On June 15, 2022, at 10:49 AM, an email was sent from the Irish Data Protection Authority to

info@myperfectwedding.eu, planner@myperfectwedding.eu, and dir@myperfectwedding.eu, requesting MY PERFECT WEDDING information on whether it processes cross-border personal data and what the main establishment of the company is.

On June 15, 2022, at 10:49 AM, the Irish Data Protection Authority received an email from planner@myperfectwedding.eu, acknowledging receipt of the previous email, but without providing further response.

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SECOND: Through the “Internal Market Information System” (hereinafter IMI System), regulated by Regulation (EU) No. 1024/2012 of the European Parliament and of the Council, of October 25, 2012 (IMI Regulation), which aims to promote cross-border administrative cooperation, mutual assistance among Member States, and the exchange of information, the aforementioned complaint was transmitted on November 1, 2022, and was registered with the Spanish Data Protection Agency (AEPD) the following day. The transfer of this complaint to the AEPD was carried out in accordance with the provisions of Article 56 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (hereinafter, GDPR), taking into account its cross-border nature and that this Agency is competent to act as the lead supervisory authority, given that MY PERFECT WEDDING has its sole establishment in Spain.

According to the information incorporated into the IMI System, in accordance with the provisions of Article 60 of the GDPR, the data protection authority of Ireland acts as an interested authority, in accordance with the provisions of Article 4(22)(c) of the GDPR, as it is the supervisory authority to which the complaint has been submitted, with no other supervisory authorities having declared interest in the present procedure.

THIRD: On January 19, 2023, in accordance with the then-current Article 64 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the complaint submitted by the complainant was admitted for processing.

FOURTH: According to the report obtained from the AXESOR tool on November 6, 2023, the entity MAKING SOLUTIONS, S.L. (MY PERFECT WEDDING) (...) was established in 2010, and had a turnover of ***AMOUNT.1 euros in 2021.

FIFTH: On December 22, 2023, the Director of the AEPD adopted a draft agreement to initiate sanctioning proceedings. Following the process established in Article 60 of the GDPR, on December 27, 2023, the aforementioned draft was transmitted through the IMI system, and the interested authorities were informed that they had four weeks from that moment to submit relevant and justified objections.

Within the deadline for this purpose, the supervisory authority of Ireland submitted its observations on the aforementioned draft agreement to initiate sanctioning proceedings, which is why on January 24, 2024, the Spanish Data Protection Agency withdrew the aforementioned decision from the IMI System. The processing period of the proceedings was automatically suspended during this period, in accordance with the provisions of Article 64 of the LOPDGDD.

SIXTH: On February 9, 2024, the Director of the AEPD adopted a new draft agreement to initiate sanctioning proceedings. Following the process established in Article 60 of the GDPR, on the same day it was transmitted through the

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IMI system the aforementioned project and the interested authorities were informed that they had four weeks from that moment to formulate relevant and justified objections. The processing period of the

proceedings was automatically suspended during these four weeks, in accordance with the provisions of Article 64 of the LOPDGDD.

Within the stipulated period, the interested control authorities did not present any relevant and justified objections in this regard, so it was considered that all authorities agreed with the revised project and were bound by it, in accordance with the provisions of section 6 of Article 60 of the GDPR.

SEVENTH: On March 12, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against MY PERFECT WEDDING, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 15 of the GDPR, classified in Article 83.5 of the GDPR.

The aforementioned initiation agreement was notified in accordance with the established LPACAP rules, and after the period granted for the formulation of allegations had elapsed, it was confirmed that no allegations had been received from MY PERFECT WEDDING.

EIGHTH: On October 10, 2024, the instructing body of the procedure issued a resolution proposal in which it was proposed to sanction MAKING SOLUTIONS, S.L. (MY PERFECT WEDDING), with NIF B76509769, for an infringement of Article 15 of the GDPR, classified in Article 83.5 of the GDPR, with a fine of €1,000.00 and that the Director of the Spanish Agency for Data Protection be ordered, pursuant to Article 58.2.d) of the GDPR, to certify within one month that it has provided due access to its personal data to the complaining party.

The aforementioned resolution proposal was notified in accordance with the established LPACAP rules, and after the period granted for the formulation of allegations had elapsed, it was confirmed that no allegations had been received from MY PERFECT WEDDING.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: On November 15, 2018, MY PERFECT WEDDING and A.A.A. and B.B.B. entered into a contract for the celebration of a wedding.

SECOND: On February 18, 2022, at 16:21 hours, the complaining party sent an email to info@myperfectwedding.eu, with the subject "Re: My Perfect Wedding I A.A.A. & B.B.B. (previously C.C.C.)" and the following content:

"Dear Sirs

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We A.A.A. and B.B.B. of ***DIRECCIÓN.1 hereby make an access request under Article 15 of the General Data Protection Regulation (GDPR) 2016/679 for a copy of any information, documents or other information you have in relation to us, in electronic or manual form in relation to ourselves and our wedding arrangements held by you.

I hereby authorise you to release all and any documents and information in relation to the aforementioned to us by way of email copies to ***EMAIL.1.

Regards,

Kind regards

A.A.A."

(unauthorized translation: "Estimados Señores,

Nosotros A.A.A. y B.B.B. de ***EMAIL.2 por la presente solicita el acceso por el artículo 15 del Reglamento General de Protección de Datos (RGPD) 2016/679 de una copia de cualquier información, documentos u otra información que posea en relación a nosotros, de forma electrónica o manual sobre nosotros y los arreglos de nuestra boda llevados a cabo por usted.

Por la presente le autorizo a proporcionar todos y cada uno de los documentos e información sobre nosotros mediante copias al correo electrónico ***EMAIL.1.

Saludos,
Saludos cordiales
A.A.A.”)

THIRD: On March 4, 2022, at 12:54 hours, the complaining party sent an email to planner@myperfectwedding.eu and to info@myperfectwedding.eu, in response to the previous email, with the subject “FW: (**REFERENCIA.1) GDPR Access request” and the following content:

“Dear Sirs,

We await hearing herein by return.

Kind regards,

A.A.A. and B.B.B.”

(unauthorized translation: “Estimados Señores, Esperamos vuestra respuesta. Saludos cordiales, A.A.A. and B.B.B.”)

- Printout of an email from dir@makingsolutionsgroup.com to ***EMAIL.3, received on March 9, 2022, at 04:12 hours, with the subject “Re: FW: (**REFERENCIA.1) GDPR Access request” and the following content:

“A.A.A., good morning:

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This document serves to confirm that we have received your request dated March 4, 2022, for access to the data held by this company in relation to you and B.B.B.

Please note that from the date of your request, a legal period of 30 days begins as established by law for this purpose. Attached is an image with an excerpt of the law for your information.

In briefly reviewing your request, we need you to clarify/confirm the following in order to proceed:

1. You request that it be done electronically, correct?
2. Do you want this delivery to be made exclusively to your email, ***EMAIL.3, correct?
3. You have copied your request to ***EMAIL.4. Please confirm that this email address belongs to B.B.B. and that it also refers to C.C.C. with email ***EMAIL.5?

Without further reference, we await your clarifications to proceed.

FOURTH: On March 9, 2022, at 4:31 AM, an email was sent from ***EMAIL.3 to dir@makingsolutionsgroup.com, in response to the previous email, with the following content:

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3. Yes, you are correct B.B.B.’s private email address is ***EMAIL.7. For the record, B.B.B.’s previous surname was C.C.C.. Not that it is relevant for the request herein.

Thanking you in advance. Kind regards, A.A.A.”

(Footnote: “Dear Sir, I note your email, I am aware of the 30-day period and oblige. You might note that the request was originally sent on the 18th of February last.

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3. Yes, you are correct B.B.B.’s private email address is ***EMAIL.7. For the record, B.B.B.’s previous surname was C.C.C.. Not that it is relevant for the request herein.

Thanking you in advance. Kind regards, A.A.A.”)

FIFTH: On June 15, 2022, at 10:49 AM, an email was sent from the Irish Data Protection Authority to info@myperfectwedding.eu, planner@myperfectwedding.eu, and dir@myperfectwedding.eu, requesting MY PERFECT WEDDING information on whether it processes cross-border personal data and what the main establishment of the company is.

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On June 15, 2022, at 10:49 AM, the Irish Data Protection Authority received an email from planner@myperfectwedding.eu, acknowledging receipt of the previous email, but without further response.

SIXTH: According to the report collected from the AXESOR tool on November 6, 2023, the entity MAKING SOLUTIONS, S.L. (MY PERFECT WEDDING) (...) was established in 2010, with a turnover of ***CANTIDAD.1 euros in 2021.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 and 60 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In this case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since MY PERFECT WEDDING collects and retains, among others, the following personal data of individuals: name and surname and email address, among other processing activities.

MY PERFECT WEDDING carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR. Furthermore, it is a cross-border processing, given that MY PERFECT WEDDING is established in Spain, although it provides services to citizens of other countries in the European Union.

III

Integrity and Confidentiality

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Article 5.1.f) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by means of appropriate technical or organizational measures ('integrity and confidentiality')."

In the present case, in the complaint submitted to the Irish Data Protection Authority on April 1, 2022,

the complainant indicates that their data has been provided to a third party without their consent. However, no evidence has been provided to substantiate this claim along with the aforementioned complaint.

In January 2024, this Agency requested the cooperation of the Irish authority to ask the complainant to provide any evidence supporting the aforementioned complaint. However, no response has been received.

In light of the above, it has not been duly established in the file that the personal data of the complainant has been improperly communicated to a third party.

The above must be connected to the validity in our Administrative Sanctioning Law of the principle of the presumption of innocence recognized in Article 24.2 of the Spanish Constitution, such that the exercise of the State's sanctioning power, in its various manifestations, is conditioned on the evidence presented and on an adversarial procedure in which the parties can defend their positions.

The principle of the presumption of innocence prevents attributing an administrative infraction when no evidence has been obtained and verified that substantiates the facts that motivate the accusation or the involvement of the alleged infringer in them.

In the present case, there is no record of an unauthorized communication of the complainant's personal data.

The Constitutional Court (SSTC 131/2003 and 242/2005, among others) has ruled in this regard by indicating that one of the requirements inherent to the right to the presumption of innocence is that the sanction must be based on acts or incriminating evidence of the conduct attributed and that the burden of proof regarding the commission of the administrative offense and the participation of the accused falls on the acting public administration.

Furthermore, Article 28.1 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector establishes as one of the principles of the sanctioning power the principle of "Responsibility" and determines in this regard that:

"Only individuals and legal entities, as well as, when a law recognizes them the capacity to act, groups of affected individuals, unions, and entities without legal personality and independent or autonomous assets, that are found responsible for the same by way of intent or negligence, may be sanctioned for acts constituting an administrative infraction."

Likewise, it should be noted what is established in Article 53.2 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, which states:

"In addition to the rights provided for in the previous section, in the case of administrative procedures of a sanctioning nature, the alleged responsible parties shall have the following rights: (...)

b) To the presumption of non-existence of administrative responsibility until proven otherwise."

Therefore, based on the indications in the previous paragraphs, no evidence has been found that substantiates the existence of an infraction within the competence of the Spanish Data Protection Agency, regarding a possible violation of Article 5.1.f) of the GDPR, in the present case.

IV

Right of access of the data subject

Article 15 of the GDPR, which regulates the right of access of the data subject, states the following:

"1. The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning them is being processed and, where that is the case, access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information as

to their source;

h) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject."

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2. When personal data is transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards under Article 46 related to the transfer.

3. The data controller shall provide a copy of the personal data being processed. The controller may charge a reasonable fee based on administrative costs for any additional copies requested by the data subject. When the data subject submits the request electronically, and unless they request otherwise, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.

For its part, Article 12 "Transparency of information, communication, and modalities for exercising the rights of the data subject" of the GDPR states:

"(...) 3. The data controller shall provide the data subject with information regarding its actions based on a request under Articles 15 to 22, without undue delay and, in any case, within one month of receiving the request. This period may be extended by a further two months if necessary, taking into account the complexity and number of requests. The controller shall inform the data subject of any such extensions within one month of receiving the request, indicating the reasons for the delay. When the data subject submits the request electronically, the information shall be provided electronically where possible, unless the data subject requests otherwise.

4. If the data controller does not act on the data subject's request, it shall inform them without undue delay, and at the latest within one month of receiving the request, of the reasons for not taking action and of the possibility of lodging a complaint with a supervisory authority and of seeking judicial remedies. (...)"

In the present case, on November 15, 2018, the complainant signed a contract with MY PERFECT WEDDING for the celebration of a wedding.

The complainant requested access to their personal data from MY PERFECT WEDDING via email dated February 18, 2022, insisting on March 4, 2022, that they had not received a response.

On March 9, 2022, MY PERFECT WEDDING responded asking if the complainant wanted access provided electronically and to which email address.

The complainant replied to this email on March 9, 2022, indicating that they wanted to receive access to their data via a specific email address.

At least until April 1, 2022, the complainant had not received a proper response to their request.

That is to say, the legal deadline established to provide any response to the complainant's request for access to their personal data had been exceeded.

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However, for the purposes of the statute of limitations for infringements, Article 74 of the LOPDGDD classifies the following conduct as minor:

"Minor infringements are considered to be those that are merely formal violations of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 and shall prescribe after one year."

Therefore, since more than a year has passed since MY PERFECT WEDDING should have provided a response to the complainant, the possible infringement of Article 12 of the GDPR would be time-barred.

However, it is currently not evidenced that such a request for access to the complainant's personal data has been addressed, so, in accordance with the evidence available at this resolution stage, it is considered that the known facts constitute an infringement attributable to MY PERFECT WEDDING for violation of Article 15 of the GDPR.

V

Classification and qualification of the infringement of Article 15 of the GDPR

The aforementioned infringement of Article 15 of the GDPR constitutes one of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"5. Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of data subjects under Articles 12 to 22;
- c) the transfers of personal data to a recipient in a third country or an international organization under Articles 44 to 49;
- d) any obligation under the law of the Member States adopted pursuant to Chapter IX;
- e) the failure to comply with a decision or a temporary or definitive limitation on processing or the suspension of data flows by the supervisory authority under Article 58, paragraph 2, or the failure to provide access in violation of Article 58, paragraph 1."

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72 of the LOPDGDD, which classifies the following conduct as very serious:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years:

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a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

k) The impediment or obstruction or the repeated failure to attend to the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679. (...)"

VI

Proposal for sanction for the infringement of Article 15 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 15 of the GDPR, allows for the imposition of an administrative fine of one thousand euros.

VII

Imposition of measures

In accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...", MY PERFECT WEDDING is required to notify this Agency within one month of the adoption of the following measures: that it has provided due access to its personal data to the complainant.

The imposition of these measures is compatible with the sanction consisting of an administrative fine,

as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the resolution that concludes this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on MAKING SOLUTIONS, S.L. (MY PERFECT WEDDING), with NIF B76509769, for an infringement of Article 15 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 1000.00 euros (ONE THOUSAND euros).

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SECOND: TO ORDER MAKING SOLUTIONS, S.L. (MY PERFECT WEDDING), with NIF B76509769, that pursuant to Article 58.2.d) of the GDPR, within one month from the date this resolution becomes firm and enforceable, to prove that it has provided due access to its personal data to the complainant.

THIRD: TO NOTIFY this resolution to MAKING SOLUTIONS, S.L. (MY PERFECT WEDDING).

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right.

The sanctioned party is warned that it must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account no.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. If not, collection will proceed during the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of

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15/15

Written communication addressed to the Spanish Agency for Data Protection, submitted through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. You must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the precautionary suspension to be concluded.

8-101224

Mar España Martí
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